

IN THE {court}, {county} COUNTY, WEST VIRGINIA{caseNumberLine}

JAMIE Q. SAMPLE,
Defendant.

DOCKET NO.: [TO BE CONFIRMED]

MOTION TO DISMISS THE CHARGES PURSUANT TO W. VA. CODE § 17C-5-2b(c)

STATUTORY AUTHORITY

W. Va. Code § 17C-5-2b(a) and (b) — The predicate the submission rests on: the court, without entering a judgment of guilt, deferred further proceedings and placed the participant on probation conditioned on successful completion of the Motor Vehicle Alcohol Test and Lock Program under § 17C-5A-3a.

W. Va. Code § 17C-5-2b(c) — When the defendant has satisfactorily completed the Motor Vehicle Alcohol Test and Lock Program and complied with its conditions, the defendant may move the court for an order dismissing the charges; the motion must be supported by the defendant's affidavit and by certification of the Division of Motor Vehicles that the programme was successfully completed; the prosecuting attorney has 30 days after service to advise the judge of objections, in the absence of which the court shall dismiss.

W. Va. Code § 17C-5-2b(d) — The legal effect requested: dismissal and discharge without adjudication of guilt, which is not a conviction for the purpose of disqualifications or disabilities.

W. Va. Code § 17C-5-2b(e) and (f) — The limits the submission must not exceed: only one discharge and dismissal is available under the section, and four categories are ineligible — any prosecution in which any violation of any other provision of article 17C-5 has been charged; a commercial driver's licence holder or operator of commercial motor vehicles; a person previously having had a licence revoked for a same-elements offence in any jurisdiction; and a person as to whom a court entered an order finding a refusal of the secondary chemical test under § 17C-5-7a. Carried so nothing is requested that the section withholds.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the {court}, [COUNTY TO BE CONFIRMED] County, West Virginia, where the proceedings occurred.

2. Venue is proper in this Court because the criminal proceedings that are the subject of this motion occurred in [COUNTY TO BE CONFIRMED] County, West Virginia.

II. PARTIES

3. Defendant is JAMIE Q. SAMPLE, whose address is 000 EXAMPLE STREET, EXAMPLE CITY, WV 00000.

4. Defendant has also been known as: J. Q. SAMPLE.

III. FACTS AND CASE HISTORY

5. On or about [PARTICIPANT'S OWN ARREST DATE — NOT SUPPLIED BY LEGALEASE], Defendant was charged with [PARTICIPANT'S OWN DESCRIPTION OF THE CHARGE — NOT SUPPLIED BY LEGALEASE] by [PARTICIPANT'S OWN ANSWER: THE AGENCY THAT ARRESTED THEM — NOT SUPPLIED BY LEGALEASE].

6. The matter was assigned Docket Number [TO BE CONFIRMED].

7. The matter was resolved with the following disposition: proceedings deferred under W. Va. Code § 17C-5-2b

without entry of a judgment of guilt; probation imposed; Motor Vehicle Alcohol Test and Lock Program completed. [DISPOSITION DATE TO BE CONFIRMED]

IV. ELIGIBILITY ALLEGATIONS

8. Defendant may be eligible for dismissal on the following basis: [ELIGIBILITY BASIS TO BE CONFIRMED].

IMPORTANT: Defendant may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

- (a) Grant this Motion and enter an Order directing the dismissal of all arrest and criminal history records in the above-captioned matter;
- (b) Direct all criminal justice agencies having custody of such records to dismiss all records relating to this matter; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

JAMIE Q. SAMPLE
000 EXAMPLE STREET, EXAMPLE CITY, WV 00000

Date: _____

[NOTE: Date of birth and Social Security Number should be added by defendant if required by the applicable form or local court rules.]

Prepared by defendant using LegalEase RCAP. This is not an official court form.